

Court No. - 21

Case :- WRIT - C No. - 52731 of 2016

Petitioner :- Mohd. Moobin @ Mohd. Muein

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Anjani Kumar Dubey

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble V.K. Shukla,J.

Hon'ble Mahesh Chandra Tripathi,J.

Mohd. Moobin @ Mohd. Muein, petitioner before this Court is requesting to decide the applications of the petitioner dated 30.07.2016 and 22.10.2016 and alongwith the same, prayer has also been made to restore the matter connection of the petitioner No. 000037 of factory at Mohalla Haziganj Kannauj.

On the matter being taken up today, Sri Baleshwar Chaturvedi, Advocate on the instruction that has been so received has proceeded to make a mention that initially provisional assessment has been done and thereafter final assessment has been made and as per the said final assessment, the amount due toward petitioner has not at all been deposited. Coupled with this, at no point of time the statutory provision of appeal as provided under Section 127 of Electricity Act 2003 has been preferred.

Once there is large scale financial liability on the shoulder of petitioner and the petitioner has not at all discharged the aforesaid liability in question then we cannot come to rescue and reprieve of the petitioner.

In view of this, writ petition as has been framed and drawn is dismissed. However, we make it clear that dismissal of the writ petition will not come in the way of petitioner from pursuing the said remedy in question as provided under Electricity Act 2003 read with U.P Electricity Supply Code 2005.

Order Date :- 5.11.2016

Dhruv